

cannot be cured by amendment. (See *McDonald v. Sup.Ct.* (1986) 180 Cal.App.3d 297, 303-04 [“Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.”].)

**PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.**

**In The Matter of Dolores L Hunter**

**26PR000169**

PETITION TO DETERMINE SUCCESSION TO PRIMARY RESIDENCE

**TENTATIVE RULING:** The Petition is GRANTED.

**CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.**

**Capital One N.A. v. Stacy Nelson, II**

**25CV000869**

MOTION TO ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

**TENTATIVE RULING:** The motion is GRANTED. The Court will sign the Proposed Order and Proposed Judgment.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at [JudicialReception2@napa.courts.ca.gov](mailto:JudicialReception2@napa.courts.ca.gov) and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Capital One, N.A., (“Plaintiff”) moves, pursuant to Code of Civil Procedure section 664.6, for entry of judgment under terms of the stipulated settlement.

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

Plaintiff shows that, on August 18, 2025, Plaintiff and Defendant stipulated to settlement of this case and agreed that the Court would retain jurisdiction to enforce its terms. (Declaration of Plaintiff's Counsel ("Counsel Decl."), ¶ 2, Exh. B.) The Stipulation Agreement ("Agreement") provides that Defendant stipulates to the entry of judgment against him in the principal sum of \$11,110.83 plus court costs less credit for payments made, and that Plaintiff would not request entry of judgment so long as Defendant is not in default with the payment plan set forth in the Agreement. (Exh. B, ¶¶ 1, 3.) Plaintiff shows that Defendant is in default and that the amount owed is \$10,239.61 [= \$11,110.83 principal, less \$1,394.83 paid, plus \$523.61 court costs]. (Counsel Decl., ¶¶ 3-4.) There is no Opposition on file.

Based on the foregoing, the motion is GRANTED.

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**In The Matter of Chelsea Cortese**

**26CV001307**

PETITION FOR CHANGE OF NAME

**TENTATIVE RULING:** Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.